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**AS AMENDED**

By: Kirt

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1 Medical and Surgical Licensure and Supervision Act as grounds for  
2 disciplinary action by:

- 3 a. any jurisdiction or authority (United States or  
4 foreign) that licenses or authorizes the practice of  
5 medicine and surgery,
- 6 b. any peer review body,
- 7 c. any health care institution,
- 8 d. any professional medical society or association,
- 9 e. any law enforcement agency,
- 10 f. any court, or
- 11 g. any governmental agency;

12 2. Any adverse judgment, settlement, or award against the  
13 licensee arising from a professional liability claim;

14 3. The licensee's voluntary surrender of or voluntary  
15 limitation on any license or authorization to practice medicine and  
16 surgery in any jurisdiction, including military, public health and  
17 foreign;

18 4. Any denial to the licensee of a license or authorization to  
19 practice medicine and surgery by any jurisdiction, including  
20 military, public health or foreign;

21 5. The licensee's voluntary resignation from the medical staff  
22 of any health care institution or voluntary limitation of the  
23 licensee's staff privileges at such an institution if that action  
24 occurred while the licensee was under formal or informal

1 investigation by the institution or a committee thereof for any  
2 reason related to alleged medical incompetence, unprofessional  
3 conduct, or mental or physical impairment;

4 6. The licensee's voluntary resignation or withdrawal from a  
5 national, state, or county medical society, association, or  
6 organization if that action occurred while the licensee was under  
7 formal or informal investigation or review by that body for any  
8 reason related to possible medical incompetence, unprofessional or  
9 unethical conduct, or mental or physical impairment;

10 7. Whether the licensee has abused or has been addicted to or  
11 treated for addiction to alcohol or any chemical substance during  
12 the previous registration period, unless such person is in a  
13 rehabilitation program approved by the Board;

14 8. Whether the licensee has had any physical injury or disease  
15 or mental illness during the previous registration period that  
16 affected or interrupted his or her practice of medicine and surgery;  
17 and

18 9. The licensee's completion of continuing medical education or  
19 other forms of professional maintenance or evaluation, including  
20 specialty board certification or recertification, during the  
21 previous registration period.

22 B. The Board may require continuing medical education for  
23 license reregistration and require documentation of that education.  
24 The Board shall promulgate rules on the specific requirements of the

1 amount of continuing medical education needed for reregistration.  
2 Failure to meet the requirements in the allotted time may result in  
3 the licensee being required to pay a nondisciplinary fine by the  
4 Board secretary of up to but not more than One Thousand Dollars  
5 (\$1,000.00).

6 C. The Board shall require that the licensee receive not less  
7 than ~~one~~:

8 1. One (1) hour of education in pain management or one (1) hour  
9 of education in opioid use or addiction each year preceding an  
10 application for renewal of a license, unless the licensee has  
11 demonstrated to the satisfaction of the Board that the licensee does  
12 not currently hold a valid federal Drug Enforcement Administration  
13 registration number; and

14 2. One (1) hour of education in integrated behavioral health  
15 care.

16 D. The licensee shall sign and attest to the veracity of the  
17 application form for license reregistration. Failure to report  
18 fully and correctly shall be grounds for disciplinary action by the  
19 Board.

20 E. The Board shall establish a system for reviewing  
21 reregistration forms. The Board may initiate investigations and  
22 disciplinary proceedings based on information submitted by licensees  
23 for license reregistration.

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1 F. Upon a finding by the Board that the licensee is fit to  
2 continue to practice medicine and surgery in this state, the Board  
3 shall issue to the licensee a license to practice medicine and  
4 surgery during the next registration period.

5 SECTION 2. NEW LAW A new section of law to be codified  
6 in the Oklahoma Statutes as Section 510.2 of Title 59, unless there  
7 is created a duplication in numbering, reads as follows:

8 A. A physician shall provide an evidence-based, validated  
9 mental health screening instrument as prescribed by the State Board  
10 of Medical Licensure and Supervision to each patient during or  
11 before a routine primary care visit.

12 B. The Board shall promulgate rules pertaining to the required  
13 screening instrument and shall create such information and  
14 educational materials necessary to implement the provisions of this  
15 section. The Board may collaborate with the State Board of  
16 Osteopathic Examiners and the Oklahoma Board of Nursing to develop  
17 such rules, information, and educational materials.

18 SECTION 3. AMENDATORY 59 O.S. 2021, Section 519.8, is  
19 amended to read as follows:

20 Section 519.8. A. Licenses issued to physician assistants  
21 shall be renewed annually on a date determined by the State Board of  
22 Medical Licensure and Supervision. Each application for renewal  
23 shall document that the physician assistant has earned at least  
24 twenty (20) hours of continuing medical education during the

1 preceding calendar year. Such continuing medical education shall  
2 include not less than ~~one~~:

3 1. One (1) hour of education in pain management or one (1) hour  
4 of education in opioid use or addiction; and

5 2. One (1) hour of education in integrated behavioral health  
6 care.

7 B. The Board shall promulgate, in the manner established by its  
8 rules, fees for the following:

- 9 1. Initial licensure;  
10 2. License renewal;  
11 3. Late license renewal; and  
12 4. Disciplinary hearing.

13 SECTION 4. NEW LAW A new section of law to be codified  
14 in the Oklahoma Statutes as Section 519.13 of Title 59, unless there  
15 is created a duplication in numbering, reads as follows:

16 A. A physician assistant shall provide an evidence-based,  
17 validated mental health screening instrument as prescribed by the  
18 State Board of Medical Licensure and Supervision to each patient  
19 during or before a routine primary care visit.

20 B. The Board shall promulgate rules pertaining to the required  
21 screening instrument and shall create such information and  
22 educational materials necessary to implement the provisions of this  
23 section. The Board may collaborate with the State Board of  
24

Osteopathic Examiners and the Oklahoma Board of Nursing to develop such rules, information, and educational materials.

SECTION 5. AMENDATORY 59 O.S. 2021, Section 567.5a, as amended by Section 1, Chapter 94, O.S.L. 2024 (59 O.S. Supp. 2024, Section 567.5a), is amended to read as follows:

Section 567.5a. A. All applicants for a license to practice as an Advanced Practice Registered Nurse shall be subject to Section 567.8 of this title.

B. An applicant for an initial license to practice as an Advanced Practice Registered Nurse shall:

1. Submit a completed written application and appropriate fees as established by the Board;

2. Submit a criminal history records check that complies with Section 567.18 of this title;

3. Hold a current Registered Nurse license in this state;

4. Have completed an advanced practice registered nursing education program in one of the four advanced practice registered nurse roles and a specialty area recognized by the Board. Effective January 1, 2016, the applicant shall have completed an accredited graduate level advanced practice registered nursing education program in at least one of the following population foci:  
family/individual across the lifespan, adult-gerontology, neonatal, pediatrics, women's health/gender-related, or psychiatric/mental health;

1        5. Be currently certified in an advanced practice specialty  
2 certification consistent with educational preparation and by a  
3 national certifying body recognized by the Board; and

4        6. Provide any and all other evidence as required by the Board  
5 in its rules.

6        C. The Board may issue a license by endorsement to an Advanced  
7 Practice Registered Nurse licensed under the laws of another state  
8 if the applicant meets the qualifications for licensure in this  
9 state. An applicant by endorsement shall:

10       1. Submit a completed written application and appropriate fees  
11 as established by the Board;

12       2. Submit a criminal history records check that complies with  
13 Section 567.18 of this title;

14       3. Hold a current Registered Nurse license in this state;

15       4. Hold recognition as an Advanced Practice Registered Nurse in  
16 a state or territory;

17       5. Have completed an advanced practice registered nursing  
18 education program in one of the four roles and a specialty area  
19 recognized by the Board. Effective January 1, 2016, the applicant  
20 shall have completed an accredited graduate level advanced practice  
21 registered nursing education program in at least one of the  
22 following population foci: family/individual across the lifespan,  
23 adult-gerontology, neonatal, pediatrics, women's health/gender-  
24 related, or psychiatric/mental health;

1       6. Be currently certified in an advanced practice specialty  
2 certification consistent with educational preparation and by a  
3 national certifying body recognized by the Board;

4       7. Meet continued competency requirements as set forth in Board  
5 rules; and

6       8. Provide any and all other evidence as required by the Board  
7 in its rules.

8       D. The Board may issue prescriptive authority recognition by  
9 endorsement to an Advanced Practice Registered Nurse licensed as an  
10 APRN-CNP, APRN-CNS, or APRN-CNM under the laws of another state if  
11 the applicant meets the requirements set forth in this section. An  
12 applicant for prescriptive authority recognition by endorsement  
13 shall:

14       1. Submit a completed written application and appropriate fees  
15 as established by the Board;

16       2. Hold current Registered Nurse and Advanced Practice  
17 Registered Nurse licenses (APRN-CNP, APRN-CNS, or APRN-CNM) in the  
18 state;

19       3. Hold current licensure or recognition as an Advanced  
20 Practice Registered Nurse in the same role and specialty with  
21 prescribing privileges in another state or territory;

22       4. Submit documentation verifying successful completion of a  
23 graduate level advanced practice registered nursing education  
24 program that included an academic course in pharmacotherapeutic

1 management, and didactic and clinical preparation for prescribing  
2 incorporated throughout the program;

3 5. Submit a written statement from an Oklahoma licensed  
4 physician supervising prescriptive authority as required by the  
5 Board in its rules;

6 6. Meet continued competency requirements as set forth in Board  
7 rules; and

8 7. Provide any and all other evidence as required by the Board  
9 in its rules.

10 E. An Advanced Practice Registered Nurse license issued under  
11 this section shall be renewed concurrently with the registered nurse  
12 license provided that qualifying criteria continue to be met.

13 F. The Board may reinstate a license as set forth in Board  
14 rules.

15 G. Continuing education requirements prescribed by the Board  
16 for Advanced Practice Registered Nurses shall include not less than  
17 one (1) hour of education in integrated behavioral health care.

18 SECTION 6. NEW LAW A new section of law to be codified  
19 in the Oklahoma Statutes as Section 567.32 of Title 59, unless there  
20 is created a duplication in numbering, reads as follows:

21 A. An Advanced Practice Registered Nurse shall provide an  
22 evidence-based, validated mental health screening instrument as  
23 prescribed by the Oklahoma Board of Nursing to each patient during  
24 or before a routine primary care visit.

1 B. The Board shall promulgate rules pertaining to the required  
2 screening instrument and shall create such information and  
3 educational materials necessary to implement the provisions of this  
4 section. The Board may collaborate with the State Board of Medical  
5 Licensure and Supervision and the State Board of Osteopathic  
6 Examiners to develop such rules, information, and educational  
7 materials.

8 SECTION 7. NEW LAW A new section of law to be codified  
9 in the Oklahoma Statutes as Section 638.2 of Title 59, unless there  
10 is created a duplication in numbering, reads as follows:

11 A. An osteopathic physician shall provide an evidence-based,  
12 validated mental health screening instrument as prescribed by the  
13 State Board of Osteopathic Examiners to each patient during or  
14 before a routine primary care visit.

15 B. The Board shall promulgate rules pertaining to the required  
16 screening instrument and shall create such information and  
17 educational materials necessary to implement the provisions of this  
18 section. The Board may collaborate with the State Board of Medical  
19 Licensure and Supervision and the Oklahoma Board of Nursing to  
20 develop such rules, information, and educational materials.

21 SECTION 8. AMENDATORY 59 O.S. 2021, Section 641, is  
22 amended to read as follows:

23 Section 641. A. All persons legally licensed to practice  
24 osteopathic medicine in this state, on or before the first day of

1 July of each year, shall apply to the secretary-treasurer of the  
2 Board, on forms furnished thereby, for a renewal certificate of  
3 registration entitling such licensee to practice osteopathic  
4 medicine and surgery in Oklahoma during the next ensuing fiscal  
5 year.

6 B. Each application shall be accompanied by a renewal fee in an  
7 amount sufficient to cover the cost and expense incurred by the  
8 State Board of Osteopathic Examiners, for a renewal of the person's  
9 certificate to practice osteopathic medicine.

10 C. 1. In addition to the payment of the annual renewal fee  
11 each licensee applying for a renewal of the certificate shall  
12 furnish to the State Board of Osteopathic Examiners proof that the  
13 person has attended at least two (2) days of the annual educational  
14 program conducted by the Oklahoma Osteopathic Association, or its  
15 equivalent, as determined by the Board, in the fiscal year preceding  
16 the application for a renewal; provided, the Board may excuse the  
17 failure of the licensee to attend the educational program in the  
18 case of illness or other unavoidable casualty rendering it  
19 impossible for the licensee to have attended the educational program  
20 or its equivalent.

21 2. The Board shall require that the licensee receive not less  
22 than:

23 a. one (1) hour of education in pain management or one  
24 (1) hour of education in opioid use or addiction each

1 year preceding an application for renewal of a  
2 license, unless the licensee has demonstrated to the  
3 satisfaction of the Board that the licensee does not  
4 currently hold a valid federal Drug Enforcement  
5 Administration registration number, and

6 b. one (1) hour of education in integrated behavioral  
7 health care.

8 Such education may be held at the annual educational program  
9 referenced in paragraph 1 of this subsection.

10 D. The secretary of the State Board of Osteopathic Examiners  
11 shall send a written notice to every person holding a legal  
12 certificate to practice osteopathic medicine in this state, at least  
13 thirty (30) days prior to the first day of July each year, directed  
14 to the last-known address of the licensee, notifying the licensee  
15 that it will be necessary for the licensee to pay the renewal  
16 license fee as herein provided, and proper forms shall accompany the  
17 notice upon which the licensee shall make application for renewal of  
18 the certificate.

19 SECTION 9. This act shall become effective November 1, 2025.

20 COMMITTEE REPORT BY: COMMITTEE ON HEALTH AND HUMAN SERVICES  
21 March 3, 2025 - DO PASS AS AMENDED  
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